

25NNCV01312 25NNCV01312

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-26

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Case Number: 25NNCV01312 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION NAME

Hearing Date: 06/26/2026

CASE NO./NAME: 25NNCV01312 Esagholyan v. Burrtec

Waste Industries, Inc., et al.

Moving Party: Burrtec

Waste Industries, Inc. and Patrick Banford

Responding Party: N/A

Notice: Sufficient

Ruling GRANT

BACKGROUND

This is a personal injury case arising out of a motor vehicle accident. On March 11, 2026, Marcello Leyva ("Plaintiff") filed a complaint against Burrtec Waste Industries, Inc. and Patrick Banford (collectively "Defendants") for negligence. On May 18, 2026, Defendants filed the instant motion to compel Plaintiff to attend a defense medical examination.

As of June 23, 2026, no opposition has been filed.

LEGAL STANDARD

Every defendant in a personal injury case is entitled to take one physical examination of the plaintiff without leave of court. (Code Civ. Proc., § 2032.220.) If a defendant in a personal injury action wishes to take additional physical examinations or a mental examination of the plaintiff, and the plaintiff will not stipulate to the same, the defendant must bring a motion for leave to compel the requested examination. (Code Civ. Proc., § 2032.310.) Such a motion should be granted only for good cause shown. (Code Civ. Proc., § 2032.320, subd. (a); see *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840.) Such a motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." (Code Civ. Proc., § 2032.310, subd. (b); see *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 260-262.) Moreover, "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2032.310, subd. (b).)

A showing of "good cause" requires that the moving party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (*Vinson*, supra, 43 Cal.3d at p. 840.) The purpose is to protect an examinee's privacy by preventing annoying "fishing expeditions." (*Ibid.*) Where plaintiff's injuries are complex, several exams may be necessary by specialists in different fields. (*Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1255.) There is no limit on the number of physical or mental exams that may be ordered on a showing of good cause. (*Ibid.*) The good cause requirement checks any potential harassment of plaintiff. (*Ibid.*)

Code of Civil Procedure section

2032.310, subdivision (b) provides: "A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." Moreover, Pursuant to Section 2032.320, subdivision (d), the specific diagnostic tests to be performed must be explicitly identified in the court's order and include the time, place, manner, diagnostic tests and procedures,

conditions, scope, and nature of the examination. (See *Carpenter v. Sup. Ct.* (2006) 141 Cal.App.4th 249, 260-262.)

In order to comply with Code of Civil Procedure section 2032.320, the Court's order must be able to set forth the names of the tests, and any names provided must have "so precise and finite a meaning in the mental health profession as to be the functional equivalent of a list of specific tests." (Id. at p. 269.)

DISCUSSION

Meet and
Confer

On April 29, 2026, defense counsel sought to meet and confer with Plaintiff regarding his objections to the Demand for Independent Medical Examination ("IME"). (Hokana Decl., ¶ 7, Ex. 4.) On May 7, 2026, defense counsel sent Plaintiff's counsel another correspondence regarding Plaintiff's failure to appear at the Medical Examination. (Hokana Decl., ¶ 9, Ex. 5.) All correspondence went unanswered by Plaintiff's counsel. (Hokana Decl., ¶ 10.)

The Court finds that the parties have not satisfied the meet and confer requirement. However, the Court will exercise its discretion and hear the motion on its merits in the interest in judicial efficiency.

Motion to
Compel

Defendants now move the Court to Order Plaintiff to attend an Independent Medical Examination with Joel Becketter, M.D. on July 15, 2026, at 10:30 a.m. in his office located at 16133 Ventura Boulevard, Suite 700 in Encino, California. Defendants argue that Plaintiff has waived all objections to Defendants' Demand for IME because the objections were untimely.

On March 3, 2026, Defendants served their Demand for IME upon Plaintiff. (Hokana Decl.,

¶ 5, Ex. 2.) The Demand required Plaintiff to attend a medical examination with Joel Beckett, M.D. at 9:00 a.m. on May 6, 2026 at his office located at 16133 Ventura Boulevard, Suite 700 in Encino, California. (Hokana Decl., ¶ 5.) Plaintiff objected to the Demand and then ultimately failed to appear at the medical examination. (Hokana Decl., ¶ 6-8.)

Defendants

have good cause to compel Plaintiff to attend an IME based on his responses to discovery. (Ex. 1.) Plaintiff has placed his medical condition at issue in this case because he claims injuries of the head, neck, back, and right upper extremity, which are central to his claim for damages.

Defendants

have outlined the scope and nature of the examination. Defendants provide the examination "will not include any diagnostic testing procedure that is painful, protracted, or intrusive. The examination will include the taking of a complete history, including the incident giving rise to any complaints of pain or discomfort, and/or a complete physical examination." (Ex. 2.) Although this language is not particularly specific as to the exact tests to be performed, the motion is unopposed.

Therefore,

the Motion to Compel Plaintiff to attend a defense medical examination is GRANTED.

Sanctions

Defendants

seeks \$2,035.00 in sanctions against Plaintiff and his counsel, consisting of 2 hours of work at a rate of \$325 per hour, an anticipated 1 hour of work for reviewing an opposition and preparing a reply, a \$60 filing fee, and the \$1,000 charged by Dr. Beckett for failure to appear at the medical examination. (Hokana Decl., ¶ 12.)

The Court

finds the time spent and hourly rate to be reasonable. However, the Court will not award fees for the anticipated time to review an opposition and prepare a reply, as no opposition was filed. Therefore, the Court will award sanctions in the reduced amount of \$1,710 against Plaintiff and his attorneys to be paid within 20 days.

Therefore,
sanctions are GRANTED.

CONCLUSION
AND ORDER

Defendants', Burrtec Waste Industries,
Inc. and Patrick Banford's Motion to Compel Plaintiff Marcello Leyva to attend
defense medical examination and for monetary sanctions is GRANTED.

Sanctions are awarded against Plaintiff
and his attorney in the amount of \$1,710.

MOVING PARTY shall provide notice of this
order.

Parties

who intend to submit on this tentative must send an email to the Court at
indicating intention to submit on the tentative as directed by the
instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the
tentative and elect not to appear at the hearing, the opposing party may
nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all
other parties in the matter, you should assume that others might appear at the
hearing to argue. If the Court does not
receive emails from the parties indicating submission on this tentative ruling
and there are no appearances at the hearing, the Court may, at its discretion,
adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court